

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR AUGUST 28, 2026 AT 8:30 A.M.**

These are the tentative rulings for the **FRIDAY, AUGUST 28, 2026 at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., THURSDAY, AUGUST 27, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: PARTIES MAY REQUEST A REMOTE APPEARANCE FOR ORAL ARGUMENT. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **COMMISSIONER CHRISTINE S. DEHR**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 1** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0085525 McDONALD, TAMMY v. CAREY, JAMIE

The motion for order directing defendant to turnover property to levying officer is dropped from calendar as no moving papers were filed with the court.

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2. M-CV-0086125 CREDIT CORP SOLUTIONS v. BEST, JENNIFER

Plaintiff's Motion to Set Aside and Vacate Default Judgment

The unopposed motion is granted. (Code of Civil Procedure section 473(b).)

The judgment entered on July 10, 2024 is vacated.

The case is dismissed without prejudice.

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**3. M-CV-0094658 FRAT ORDER OF EAGLES ROSEVILL AERIE 1582 v.
ALNAJJAR, MUANMAR**

This tentative ruling is issued by the **Honorable Stephen L. Mock**. If oral argument is requested, it will be heard on **August 31, 2026 at 8:30 a.m. in Department 44** by the Honorable Stephen L. Mock.

Motion to Set Aside Default and Default Judgment

Defendant Mustafa Alnajjar moves to set aside default and default judgment pursuant to Code of Civil Procedure sections 473(d) and 473.5. Plaintiff opposes the motion.

Defendant's motion is supported by his declaration, which includes, "[SIGNATURE PAGE FOLLOWS]." (Mustafa Alnajjar Decl., at p. 2:18.) However, no declaration follows (only the one included at the end of the proposed responsive pleading). As the information is unsupported by any declaration signed under penalty of perjury pursuant to Code of Civil Procedure section 2015.5, defendant's motion is unsupported by any evidence.

The court, on its own motion, continues the motion to set aside default and default judgment to be heard on **September 29, 2026 at 8:30 a.m. in Department 1**. By September 4, 2026, defendant shall file and serve an amended declaration and ensure it is signed under penalty of perjury pursuant to Code of Civil Procedure section 2015.5. No other briefing is permitted.

Motion for Sanctions

Plaintiff's motion for monetary sanctions against defendant Mustafa Alnajjar and defendant's counsel of record Seth Wiener pursuant to Code of Civil Procedure section 128.7 is likewise continued to **September 29, 2026 at 8:30 a.m. in Department 1** be heard together with the motion to set aside default and default judgment. No further briefing is permitted.

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4. M-CV-0096555 SANSOM, JAMES v. CHIANG, JENNIFER

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Plaintiff's Motion to Compel Compliance with Court Orders, Entering Judgment, and
Issuing Writ of Possession

The appearances of the parties are required at the hearing.

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5. S-CV-0051279 CLEANRITE v. PITERMAN, MILANENDRA

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant Milanendra Piterman's Motion for Leave to File Cross-Complaint

The motion is granted. Defendant Milanendra Piterman shall file and serve the cross-complaint by September 4, 2026.

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6. S-CV-0051579 CARTER, WILLIAM v. SHAHI, KAVIAN

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant Kavian Shahi's Motion to Deem Requests for Admissions, Set One, as to Plaintiffs Victoria Carter and William Carter Deemed Admitted and Monetary Sanctions

The unopposed motion is granted.

The matters encompassed in defendant Kavian Shahi's requests for admissions, set one, are deemed admitted as to plaintiffs Victoria Carter and William Carter.

Sanctions in the amount of \$3,430.00 are imposed upon plaintiffs Victoria Carter and William Carter, jointly and severally.

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7. **S-CV-0052434 GALVAN, MARIA v. LAWTON CONST & REST**

Case Management Conference

The appearances of the parties are required for the hearing.

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8. S-CV-0052505 DEZA, NICOLE v. EURO SNACK

This tentative ruling is issued by the **Honorable Trisha J. Hirashima**. If oral argument is requested, it will be heard on **September 1, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Final Account

On April 29, 2025, the court granted preliminary approval of the class action and PAGA settlement and issued a written order on May 8, 2025. On November 4, 2025, the court granted final approval of the class action and PAGA settlement. The court issued a final judgment on December 5, 2025, which set this hearing for final accounting.

The court has carefully reviewed the declaration of Stacey Shim filed July 28, 2026, together with the entire court file. The final accounting is approved. No further hearings are scheduled.

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9. S-CV-0053675 DOLORES, DALIA v. ROMERO SR., PHILIP

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Petition for Approval of Minor's Compromise as to Julenee Dolores

The petition is granted as prayed.

If oral argument is requested, the appearance of the minor at the hearing is waived.

Petition for Approval of Minor's Compromise as to Areli De Los Santos

The petition is granted as prayed.

If oral argument is requested, the appearance of the minor at the hearing is waived.

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10. S-CV-0053907 EDMONDS, LANCE v. RED WOLF LODGE AT OLYMIC VALLEY

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant Squaw-Tahoe Resort Time Interest Owners' Association's Demurrer to the First Amended Complaint (FAC)

Ruling on Request for Judicial Notice

Defendant's request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Demurrer

The demurrer is sustained in its entirety without leave to amend.

In the current request, defendant demurs to the first cause of action for battery; third cause of action for intentional infliction of emotional distress; fourth cause of action for fraudulent concealment; fifth cause of action for private nuisance; and seventh cause of action for breach of contract. Defendant contends that all five challenged causes of action are deficiently pleaded, failing to allege sufficient facts to support any of the claims.

The court has carefully read the FAC, giving the pleading a reasonable interpretation while reading the documents as a whole and considering each part in their context. (*Speegle v. Board of Fire Underwriters* (1946) 29 Cal.2d 34, 42, superseded by statute on other grounds in *Manufacturers Life Ins. Co. v. Superior Court* (1995) 10 Cal.4th 257, 269.) A review of the five causes of action show that each is deficiently pleaded, failing to allege sufficient facts to support any of the challenged claims. (Defendant's demurrer pp. 4:14-5:23; 5:27-7:21; 7:26-8:21; 8:26-9:9; 9:20-10:10; Code of Civil Procedure section 472d.)

Plaintiff failed to file any opposition to the pending demurrer, which the court construes as plaintiff having abandoned each of the challenged claims. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) Thusly, the demurrer is sustained without leave to amend.

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10. S-CV-0053907 EDMONDS, LANCE v. RED WOLF LODGE AT OLYMIC VALLEY

Defendant's Motion to Strike Portions of the First Amended Complaint (FAC)

The motion is granted. (Code of Civil Procedure section 435(b)(1), 436(a), (b).)

Defendant seeks to strike all references to punitive damages and requests for attorneys' fees in the FAC, asserting that the allegations within the FAC are not sufficiently pleaded to support any such requests. The court has carefully considered the allegations within the FAC. Even when providing the pleading a liberal construction and reading the document as a whole, the allegations within the FAC are insufficient to plead punitive damages or an award of attorney's fees.

Plaintiff has not filed any opposition to the current request. In light of the pleading deficiencies and the failure of plaintiff to oppose the current challenge, the court grants the motion without leave to amend.

The language referencing punitive damages in paragraphs 85; 98; 112; and p. 27:21 in the FAC is stricken.

The language referencing attorneys' fees at p. 27:22 is stricken.

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11. S-CV-0055115 KONSKY, MICHAEL v. MUSGROVE, SEAN

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendant's Motion for Summary Judgment

The appearances of the parties are required at the hearing.

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12. S-CV-0055258 WAMPLER, DAVID v. TAYLOR, RYAN

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant Ryan Taylor's Motion to Compel Plaintiff's Responses to Form Interrogatories; Special Interrogatories; Requests for Production; and Issue Sanctions

The motion is granted in part.

Plaintiff David Wampler shall provide verified responses, without objections, to form interrogatories, set one, by September 25, 2026.

Plaintiff David Wampler shall provide verified responses, without objections, to special interrogatories, set one, by September 25, 2026.

Plaintiff David Wampler shall provide verified responses and responsive documents, without objections, to requests for production of documents, set one, by September 25, 2026.

The request for issue sanctions is denied. Nonetheless, plaintiff is advised that repeated conduct of failing to comply with discovery obligations may lead the court to find an abuse of the discovery process and award sanctions, including terminating sanctions, on that basis. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, overruled on other grounds in *Garcia v. McCutchen* (1997) 16 Cal.4th 469, 478, fn. 4.)

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13. S-CV-0055515 HENSCHEL, MATTHEW v. HENGL, KEVIN

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendants Kevin Hengl and Richard Hengl's Motion to Quash Plaintiffs Matthew Henschel and Lindsay Henschel's Deposition Subpoena as to Third Party Morgan Clark or Morgan Clark Designs (MCD1, Inc.) and Sanctions

The motion is granted as prayed.

The deposition subpoena issued to third party Morgan Clark or Morgan Clark Designs (MCD1, Inc.) on February 5, 2026 by plaintiffs is quashed in its entirety.

Sanctions in the amount of \$3,260.00 are imposed upon plaintiffs Matthew Henschel, Lindsay Henschel, and plaintiff's counsel, jointly and severally.

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14. S-CV-0055809 RIEDEL, BRUCE v. APRIA HEALTHCARE

Plaintiffs' Motion to Compel Answers to Discovery

The motion is denied.

The motion is both procedurally and substantively deficient. It is noted that there is no proof of service filed with the court showing the opposing party was served with the current motion. There is also no supporting declaration identifying the discovery subject to the motion; when it was served; or whether responses were served. Finally, the memorandum of points and authorities is devoid of any legal authority or argument to support the pending requests. Due to all of these deficiencies, the motion is denied.

Plaintiffs' Motion to Compel Discovery

The motion is denied.

This second discovery motion suffers from many of the same procedural and substantive deficiencies that exist as to the first motion. There is no proof of service on file showing defendant was served with the current request. There, again, is no supporting declaration identifying the discovery subject to the motion; when it was served; or whether responses were served. The memorandum of points and authorities is also limited in analysis. In light of this, the second motion is also denied.

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15. S-CV-0056377 GOODALE, DOUGLAS v. DOUGLASS, KIM

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Petition to Compel Arbitration

The unopposed petition is granted. (Code of Civil Procedure section 1281.2.)

The parties in this action are ordered to participate in arbitration pursuant to the terms of the Vacant Land Purchase Agreement.

The current action is stayed. (Code of Civil Procedure section 1281.4.)

An OSC re Arbitration is set for **JANUARY 8, 2027 at 9:00 A.M. in DEPARTMENT 1**. The parties shall file declarations regarding the status of arbitration by December 21, 2026.

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16. S-CV-0056429 GARCIA, LETICIA v. BARTELS, DAVID

The reserved hearing on the motion for publication and motion to strike are dropped from the calendar as no moving papers were filed with the court.

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17. S-CV-0056897 POTAPOVA, ANASTASHA v. TESLA

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant Tesla, Inc.'s Motion to Strike the Complaint

The motion is granted with leave to amend. (Code of Civil Procedure section 435(b)(1), 436(a), (b).)

Defendant challenges the punitive damages alleged in the complaint, asserting plaintiffs have not pled sufficient facts to support such a request. The court has carefully considered the allegations within the complaint, reading the pleading as a whole and providing the most liberal construction in favor of plaintiffs. A review of the allegations show that the allegations as to defendant Tesla are pled in a conclusory fashion without sufficient specific factual allegations to support punitive damages. (Civil Code section 3294; *Brousseau v. Jarrett* (1997) 73 Cal.App.3d 864, 872.) In light of this, the motion is granted.

The language referencing punitive damages in pp. 9:22-10:3; 15:8-18; 23:18; and 24:2 is stricken.

A first amended complaint shall be filed and served by September 11, 2026.

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18. S-CV-0057018 KING, TED v. TARVER, RUSSELL

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Plaintiff's Motion to Vacate Judgment Entered in Placer Court Case No. SCV-42357

The appearances of the parties are required for the hearing.

Defendant Santiago Garcia's Demurrer to the First Amended Complaint (FAC)

The appearances of the parties are required for the hearing.

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19. S-CV-0057427 IRPO MIC-BRY8

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Amended Petition for Approval of Transfer of Structured Settlement Payments

The petition is denied without prejudice.

The court has carefully considered the supporting declarations and documents submitted in relation to the petition. There has been an insufficient showing that the transfer is in the best interest of the payee. Specifically, the payee attests that he does not rely upon the annuity payments in paragraph 4 of his declaration. However, the payee goes on to attest to unpredictable income due to the cessation of annuity payments that will occur in 2027. (Payee's declaration ¶6.) Furthermore, the payee contends that he will purchase a separate annuity with a portion of the proceeds but does not provide any further information or documents to support the assertions that the purported investment amount will yield the asserted \$1,000.00 per month. (Ibid.) The court declines to grant the request until such time as these matters are resolved through the submission of further declarations and documentation.

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20. S-CV-0057429 CARPENTER, WILLIAM v. TWO COMMAS

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Petition for Authorization to Conduct Pre-Action Discovery

The appearances of the parties are required for the hearing.

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21. S-CV-0057647 SINGH, SWAIMAN v. DEOL, HARPRAN

**NOTE: If oral argument is requested in this case, it shall be heard on
AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Plaintiff/Cross-Defendant Swaiman Singh's Anti-SLAPP Motion

The appearances of the parties are required for the hearing.

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22. S-CV-0057887 IRPO FLIAHA, ALIAKSEI

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Petition for Expedited Approval of Minor's Compromise as to Victoria Fliaha

The petition is granted as prayed.

If oral argument is requested, the appearance of the minor at the hearing is waived.

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23. S-CV-0057926 IRPO SAHNI, GURPREET

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 28, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Petition for Expedited Approval of Minor's Compromise as to Ekampreet Sahni

The petition is granted as prayed.

If oral argument is requested, the appearance of the minor at the hearing is waived.

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